

**BEFORE A
COMMISSION ON PROFESSIONAL COMPETENCE
ALAMEDA COUNTY OFFICE OF EDUCATION
STATE OF CALIFORNIA**

**In the Matter of the Dismissal of:
MATTHEW CAMPBELL,
A Permanent Certificated Employee,
Respondent.**

OAH No. 2024060174

DECISION

A Commission on Professional Competence (Commission) heard this matter by videoconference on November 5 through 8 and November 12 through 14, 2024. The Commission's members were Alayna Carter, Kelly Cooper, and Administrative Law Judge Holly M. Baldwin, State of California, Office of Administrative Hearings, who presided.

Attorneys Sarah E. Fama, Erin M. Hamor, and Aysha Pal represented complainant Cynthia Jenkins, Chief of Human Resources for the Alameda County Office of Education (ACOE).

Attorney Clarissa M. Romero represented respondent Matthew Campbell, who was present at hearing.

The Commission received oral opening statements and testimonial and documentary evidence. The record was held open at the conclusion of the hearing to permit the parties to conduct additional discovery, offer additional documents, and submit closing briefs. Following a status conference with counsel, the parties offered documents, which were admitted into evidence as Exhibits 45, 46, 47, 48, P, Q, R, S, T, and U, as set forth in the Order issued on January 10, 2025. Each party then submitted a timely closing brief and reply brief, which were marked for identification as Exhibit 49 (ACOE's closing brief with attached hearing transcripts), Exhibit 50 (ACOE's reply brief), Exhibit V (respondent's closing brief), and Exhibit W (respondent's reply brief).

The record closed and the matter was submitted on February 25, 2025.

FACTUAL FINDINGS

Procedural History

1. Respondent Matthew Campbell has been a permanent certificated employee of ACOE since 2008. Respondent was most recently assigned to teach Physical Education (PE) to incarcerated youth at the Juvenile Justice Center (JJC), sometimes referred to as Juvenile Hall.

2. On April 12, 2024, complainant Cynthia Jenkins, acting in her official capacity as Chief of Human Resources for ACOE, signed and filed with ACOE a proposed Notice of Intent to Dismiss, Placement on Immediate Unpaid Suspension, and Proposed Statement of Charges against respondent. Jenkins caused respondent to be served with the Proposed Statement of Charges, and notice of a pre-disciplinary *Skelly* meeting with Allan Garde, Associate Superintendent for Business Services. Respondent's counsel provided a written response on April 19, 2024, in lieu of a

meeting. On April 22, 2024, Garde issued a letter in his capacity as the *Skelly* officer, upholding ACOE's recommendation for respondent's dismissal.

3. On April 23, 2024, Jenkins signed and caused respondent to be served with the final Notice of Intent to Dismiss, Placement on Immediate Unpaid Suspension, and Statement of Charges. Respondent timely requested a hearing, and this hearing before the Commission followed.

4. During the hearing in this matter, ACOE requested and received leave to amend the Statement of Charges to conform to the evidence received at hearing. The amendments did not change the nature of the allegations against respondent or the grounds for dismissal, but included an expanded time frame for his alleged conduct.

5. On November 14, 2024, complainant filed the operative First Amended Notice of Intent to Dismiss; Placement on Immediate Unpaid Suspension Pending Outcome of Disciplinary Proceedings; and Statement of Charges (Amended Statement of Charges). The Amended Statement of Charges specifies the following grounds for dismissal: immoral conduct, including but not limited to egregious misconduct (Ed. Code, § 44932, subd. (a)(1)); and evident unfitness for service (*id.*, subd. (a)(6)).

6. The Amended Statement of Charges contains allegations relating to two female students who were taught by respondent when they were detained at the JJC. In summary, the allegations are: on one or more occasions since S.B.¹ was 12 years old, respondent approached S.B. on International Boulevard in Oakland and/or contacted her to solicit sex from her; on one or more occasions during that time period, respondent engaged in sexual intercourse and/or oral sex with S.B. and paid her for

¹ Students are referred to by their initials to protect their privacy.

engaging in such sexual conduct; respondent solicited S.B. and M.H. for sex on International Boulevard in or around June or July 2022 (when both girls were age 16), an offer that M.H. declined but that S.B. accepted, engaging in sexual activity with respondent at San Antonio Park in exchange for money; and respondent paid S.B. additional money not to tell anyone about their sexual activity.

Factors for Evaluation of Witness Credibility

7. Resolution of the issues in this matter depends on witness credibility. The Commission evaluated credibility pursuant to Evidence Code section 780, which provides that the trier of fact may consider in determining the credibility of a witness any matter that has any tendency in reason to prove or disprove the truthfulness of the witness's testimony, including but not limited to: demeanor while testifying and the manner in which the witness testifies; character of the testimony; extent of the witness's capacity to perceive, recollect, or communicate the matter being testified to; extent of the witness's opportunity to perceive the matter being testified to; character for honesty and veracity or their opposites; existence or nonexistence of a bias, interest, or other motive; previous consistent statements; previous inconsistent statements; existence or nonexistence of any fact testified to by the witness; attitude toward the action in which the witness testifies or toward the giving of testimony; and admission of untruthfulness.

8. A trier of fact may accept part of a witness's testimony but reasonably disbelieve other parts of it. (*Vallbona v. Springer* (1996) 43 Cal.App.4th 1525, 1537.) The trier of fact may "reject part of the testimony of a witness, though not directly contradicted, and combine the accepted portions with bits of testimony or inferences from the testimony of other witnesses thus weaving a cloth of truth out of selected available material." (*Stevens v. Parke, Davis & Co.* (1973) 9 Cal.3d 51, 67-68.) "Although

impeaching evidence in the nature of contradictions or otherwise has been received, it is still the right as well as the duty of the jury to determine to what extent they believe or disbelieve the testimony. [Citations.] They may likewise give credence to a witness . . . whose testimony contains contradictions or inconsistencies." (*Hansen v. Bear Film Co., Inc.* (1946) 28 Cal.2d 154, 184.) Moreover, the testimony of "one credible witness may constitute substantial evidence." (*Kearl v. Board of Medical Quality Assurance* (1986) 189 Cal.App.3d 1040, 1052.)

Respondent's Background, Employment History, and Coaching

9. Respondent is 62 years old. He has been married to his wife for more than 33 years and they have three adult sons together.

10. Respondent graduated from Nampa Christian High School in Nampa, Idaho in 1982. He graduated from college at Mid-America Nazarene College in 1990. He later took classes at Boise State University and University of Phoenix in connection with obtaining his teaching credential. Respondent taught and coached football at Nampa Christian High School for 14 years.

11. Respondent also has experience working in construction, with a business name of "Campbell Roofing and Flooring."

12. In 2005, respondent moved from Idaho to California. Since moving to California, respondent lived first in Antioch (11 years), then in Concord (four years), and now lives in Pittsburg (the past four years).

13. Respondent was head football coach and a PE teacher at Berean Christian High School in Walnut Creek from 2005 to 2007. He taught at Alliance High School, a continuation high school in the Mt. Diablo Unified School District, from 2007 to 2008.

14. Since 2008, respondent has been employed by ACOE as a teacher, at several school sites (locations are described in Factual Findings 20 and 21), as follows:

- Camp Sweeney (PE and history), September 2008 to February 2010;
- JJC ("floater" teaching students one-on-one), February to August 2010;
- Camp Sweeney (English, history, and PE), August 2010 to September 2014;
- JJC (floater and substitute teacher), September 2014 to August 2017;
- Bridge Academy (English, social science, math, science), August 2017 to March 2018;
- Thunder Road (English, social science, math, science), March to July 2018;
- JJC and Camp Sweeney (PE and floater), July 2018; and
- JJC (PE), 2019 to the present.

15. Respondent also taught summer school at the JJC and/or Camp Sweeney each summer between 2009 and 2023.

16. Respondent received the ACOE Teacher of the Year award in 2022.

17. From April 2021 to August 2022, while respondent was assigned to teach at the JJC in San Leandro, he was required to participate in weekly COVID testing. From April 13 to June 8, 2021, respondent went to the testing location at ACOE's central office on Winton Avenue in Hayward, at various times in the afternoons (2:30, 1:45, 3:15, 12:45 p.m.). The Winton Avenue location was ACOE's only COVID testing location at that time. The shortest driving route to the ACOE office on Winton Avenue from the JJC in San Leandro is 5.9 miles.

Starting in August 2021, ACOE offered COVID testing at Winton Avenue and also at Bridge Academy in Oakland, and employees could choose either location. Respondent went to the testing location at Bridge Academy weekly at lunchtime from August 24, 2021, through August 30, 2022 (approximately 40 times). The shortest driving route to Bridge Academy in Oakland from the JJC in San Leandro is 12 miles.

18. While working as a teacher for ACOE, respondent also coached sports for multiple schools. Respondent coached football at Acalanes High School in Lafayette in 2008–2009; at Valley Christian High School in Dublin in 2009–2010 and about 2014 or 2015; and at Northgate High School in Walnut Creek in 2016 to 2020.

At Northgate High School, respondent coached freshman football for two years and junior varsity football for two years. During football season (fall), practices were from 3:30 to 5:30 or 6:00 p.m. Monday through Thursday, with freshman games on Thursday nights, and junior varsity/varsity games on Friday nights. He had weekend practice on Saturday mornings and coaches' meetings on Sunday afternoons.

Respondent coached track at Northgate High School in spring 2018, with practices from 3:30 to 5:00 or 5:30 p.m. on weekday afternoons, and track meets on Saturdays. Respondent assisted his oldest son in coaching basketball at Walnut Creek Christian Academy in 2017–2018.

Background Information Relevant to this Matter

ACOE SCHOOLS AND STUDENTS

19. Alameda County Superintendent of Schools Alysse Castro testified credibly at hearing and described ACOE and the students it serves. Castro has 27 years of experience in the educational field and is an expert on alternative education and

underserved youth. ACOE acts as a small school district directly providing education to students who are not served by their regular districts because they have been expelled, are incarcerated, or require an alternative school setting for other reasons. ACOE also provides support to 18 school districts across Alameda County to help those districts serve their enrolled students.

20. The school sites directly operated by ACOE include court schools for incarcerated youth at Butler Academic Center in the JJC and at Camp Sweeney. The JJC and Camp Sweeney facilities are run by the Alameda County Probation Department, and are located adjacent to each other on Fairmont Drive in San Leandro. Students come and go frequently from these schools based on their detention status.

There are several housing units at the JJC that house boys, and one (Unit 6) that houses girls. Students in Unit 6 are taught by one teacher for most subjects, in a classroom on the unit. They attend PE class with a different teacher. PE classes take place in the gym or outside on the blacktop. Juvenile Institutional Officers (JIO's) who work for the Probation Department provide institutional security and supervision of youth housed in the JJC, and escort students to and from their classes and activities.

21. ACOE also runs community-based schools. Thunder Road Community School was formerly an academic program for high-school aged students, located in a residential substance abuse treatment center on 40th Street in Oakland.

Bridge Academy is located at 750 International Boulevard, on the corner of International Boulevard (also known as E. 14th Street) and 8th Avenue in Oakland. Bridge Academy houses small-group or independent study education programs for youth who have been expelled or referred by probation or child welfare authorities, and other services such as a family resource center and behavioral health services.

22. The students who are directly served by ACOE are a very vulnerable population, including youth who are homeless, in foster care, or in the juvenile justice system. Almost all of ACOE's students are of low socioeconomic status, and almost all of them are non-white. About half of the students have special education needs. ACOE works with a significant number of youth who have been or are being trafficked and exploited for commercial sex.

23. Castro described ACOE's goal of approaching education through a trauma-informed lens, because students cannot learn effectively when they are scared. Castro noted that despite the traumatic experience of arrest and detention, for many students, the JJC is a stable and safe place, where they may perform better in school while removed from the influence of their traffickers.

INTERNATIONAL BOULEVARD AREA AND COMMERCIAL SEX TRAFFICKING

24. A stretch of International Boulevard in the San Antonio area of Oakland is known for sex trafficking and the commercial sexual exploitation of minors on the street, and it has several nicknames: the Blade, the Strand, or the Strip. A number of youth detained at the JJC have been sexually trafficked in that area (and elsewhere). Engaging in sexual activity in exchange for money is commonly referred to as a "date."

25. Bridge Academy is located on the stretch of International Boulevard in the San Antonio neighborhood where sex trafficking on the street is common. Multiple witnesses credibly testified at hearing that anyone who visits Bridge Academy or that portion of International Boulevard could be expected to see sex workers in plain sight.

Castro makes frequent site visits to Bridge Academy, most commonly at about 9:00 a.m., but she has visited at all times of the work day. Castro described this location as having markedly visible commercial sex trafficking, with numerous young

women standing on street corners or walking from one corner to the next, wearing extremely skimpy clothing such as a G-string and a mesh tank top or a dress shorter than the underwear line, and very high heels or, occasionally, bedroom slippers. Castro also described seeing drivers stopping on the street and these young women getting into the cars and leaving with the drivers, and she described sometimes seeing a young man come out of a doorway and direct one of the young women to step closer to the street. Castro made a video recording at approximately 9:00 a.m. on October 10, 2024 (a Thursday), starting on 12th Avenue, driving down International Boulevard for four blocks, and ending at Bridge Academy at the corner of 8th Avenue. The video reflects that in this short drive there were four young women visible on the street and corners wearing this type of skimpy clothing. Castro testified credibly that this is consistent with her other visits to the area, stating that she has never been to Bridge Academy without seeing visible sex trafficking activity. Castro has also heard such activity frequently discussed by staff at Bridge Academy.

The testimony of Jenkins about this location was consistent with that of Castro. Jenkins has visited Bridge Academy three or four times in the mornings or lunchtime, and has seen commercial sex workers on the street each time.

Multiple other ACOE and JJC staff described their awareness of the commercial sex trafficking on International Boulevard in their testimony at hearing and in interviews during the investigation of this matter.

ACOE BOARD POLICIES, REGULATIONS, AND TEACHER TRAINING

26. Education Code section 212.5 prohibits sexual harassment in school environments, as do ACOE Office Regulation 4119.11 and County Board Policy 5145.7.

27. County Board Policy 5142 (Safety) discusses the importance of providing a safe school environment conducive to learning that promotes student well-being.

28. County Board Policy 1313 (Civility) recognizes the impact that civility has on the effective operation of ACOE and creation of a safe and positive school climate; defines civil behavior as including observance of laws and rules; and provides that staff shall not communicate or behave in a manner that disrupts, hinders, or threatens the orderly conduct of ACOE operations or the educational program.

29. County Board Policy 4319.24 (Maintaining Appropriate Adult-Student Interactions) requires all adults with whom students may interact at school to maintain the highest professional and ethical standards in their interactions with students both within and outside the educational setting. These adults may not engage in unlawful or inappropriate interactions with students and must avoid boundary-blurring behaviors that undermine trust in the adult-student relationship. ACOE employees are prohibited from entering into or attempting to form a sexual relationship with any student or other conduct of a sexual nature.

30. ACOE teachers are mandated reporters, and must report any suspected child abuse or neglect. Respondent completed required trainings about sexual harassment and mandated reporting of child abuse and neglect.

STUDENTS S.B. AND M.H.

31. S.B. was born in May 2006. She grew up in Oakland in the foster care system, and lived in more than 10 foster homes over the years. She experienced violence as a child. S.B. used to run away from her foster homes and go with pimps. S.B. had been trafficked for sex since she was 12 years old, at locations including International Boulevard, the area near the Oakland airport, Stockton, and Los Angeles.

S.B. was detained in and released from the JJC multiple times, and she was enrolled in school at Butler Academic Center in the JJC during the periods that she was detained. S.B. was first enrolled in school at the JJC on March 18, 2020 (at age 13), and her last date of enrollment was June 10, 2024 (shortly after she turned 18).

32. M.H. was born in December 2005. She was also in and out of detention at the JJC on multiple occasions, and was enrolled in school at Butler Academic Center when she was detained. M.H. was first enrolled in school at the JJC on June 21, 2022 (at age 16), and her last date of enrollment was May 9, 2024 (at age 18).

Soliciting and Paying Minor Students for Sex

ALLEGATIONS RAISED AT M.H.'S IEP MEETING

33. On September 19, 2023, M.H. had an IEP (Individualized Education Program) meeting in a classroom in Unit 6 at the JJC. In attendance at the IEP meeting were M.H.; school psychologist John S. Moore III, Ph.D.; resource specialist teacher David Noack; general education teacher Kate Edwards; and Public Defender's Office social worker Sascha Atkins-Loria, L.C.S.W.; with M.H.'s grandparent attending by speakerphone. Dr. Moore, Noack, Edwards, and Atkins-Loria each testified at hearing about the IEP meeting and the disclosures made by M.H. that day, consistently with each other and with previous investigative interviews.

34. Part of the IEP meeting involved a discussion of M.H.'s credits earned and her progress toward graduation. M.H. had credit deficiencies across multiple subjects, including PE. She appeared eligible for a reduced credit diploma under AB 2306, in which a student may receive a diploma without elective requirements and fewer overall credits, upon the consent of a parent, guardian, or educational rights holder. M.H. was advised during the IEP meeting that she needed to participate in PE class.

35. After the formal IEP meeting had concluded and the grandparent had disconnected from the phone, there was further discussion about M.H.'s lack of participation in PE class. M.H. said that she did not like PE class and did not like the teacher (respondent). M.H. stated that respondent required students to do stretches and exercises that were sexually suggestive and made students uncomfortable.

36. At some point, M.H. asked to speak to Atkins-Loria privately. Atkins-Loria and M.H. moved to another part of the room to speak together, and M.H. disclosed that respondent had been engaging in commercial sexual activity with another girl on the unit since that girl was much younger. Atkins-Loria asked M.H. if she wanted to share this information with the IEP team. M.H. agreed, and they rejoined the group.

37. M.H. disclosed that respondent had "dated" S.B., another girl housed in the unit, while they were out of custody. M.H. also described an incident that had occurred during their PE class several days previously (September 15, 2023). The students were outside on the blacktop and respondent was getting upset because they were not participating in PE class. S.B. made a verbal outburst along the lines of, "you don't want me to tell everyone what you were doing on International Boulevard buying pearl, and you bought my pearl." (As described by witnesses at hearing, "pearl" is a slang term for female genitalia.) M.H. stated that respondent's face got red and he shut down class for the day and sent the girls back to the unit. M.H. also stated that other students had seen respondent on International Boulevard.

38. Dr. Moore determined he needed to make a mandated report. Noack left to find the principal. Dr. Moore, M.H., and Atkins-Loria moved to an interview room on the unit to discuss the matter further. M.H. stated that she had been with S.B. out on "the Strand" and respondent had solicited them both. M.H. turned respondent down, but S.B. accepted and went on a "date" with respondent. M.H. said this had occurred in

about June 2022. M.H. also stated that she was advocating for S.B. because S.B. was scared. M.H. identified D.S. as another student who saw respondent on International Boulevard.

Dr. Moore had S.B. and D.S. join them in the interview room.

D.S. spoke with Dr. Moore and Atkins-Loria briefly and confirmed she had seen respondent on International Boulevard.

S.B. confirmed that she had been with M.H. on the Strand and respondent had solicited them both, that M.H. said no, but S.B. agreed and went on a "date" with him. S.B. also stated that respondent paid her extra money to keep quiet. S.B. stated that she had seen respondent handing out wellness kits (sandwich bags with items such as masks, hand sanitizer, and condoms) to people on the Strand two or three years prior.

39. Dr. Moore left the interview room to make telephone calls, which took some time. Atkins-Loria remained in the interview room with M.H. and S.B.

40. Dr. Moore called the Alameda County Sheriff's Office to report the information disclosed by M.H. and S.B. Dispatch staff consulted with a sergeant who instructed them to refer the call to the Oakland Police Department, since the reported activity occurred in Oakland.

41. Eventually, an Oakland Police Department dispatcher called Dr. Moore back to obtain more information, and spoke to Dr. Moore, S.B., and M.H. on speakerphone. The audio recording and a transcript of the call were admitted into evidence in this matter. The dispatcher attempted to determine where the reported solicitation and sexual activity had occurred, noting that International Boulevard stretches across a large portion of Oakland. S.B. reported she was standing on one of

the cross streets in the area of the Strand when respondent picked her up, and they went to a park area. Dr. Moore pulled up Google Maps on his computer screen, and S.B. and M.H. looked at maps to narrow down the location while speaking to the dispatcher. S.B. and M.H. stated that respondent got their attention on E. 19th Street. M.H. did not date him, but S.B. agreed and went with respondent to an area near the track at San Antonio Park² to have sex. The dispatcher arranged for an officer to come to the JJC to take a report. As reflected in the audio recording of the call, the demeanor of S.B. and M.H. sounded genuine and straightforward, not exaggerated.

42. S.B. and M.H. each made similar disclosures to JIO Robert King the same day. At hearing, King explained that when he entered the unit that day, S.B. and M.H. were in a meeting in the guidance counselor's office. Later, S.B. approached King in the dayroom and asked to speak with him privately. S.B. told King that she had had a relationship with respondent "on the outs" (while not in custody). Within a few minutes before or after S.B.'s disclosure, M.H. also approached King in the dayroom, and told him that she knew respondent "on the outs." (King did not remember which girl approached him first.) King contacted his supervisor to start the mandated report process and made an incident report about these disclosures.

² Maps in evidence reflect that San Antonio Park is a large square area with open spaces and sports facilities, bordered by E. 19th Street on the northeast side, Foothill Boulevard on the southeast side, 16th Avenue on the west side and 18th Avenue on the east side. The soccer field and track are near the portion of the park bordered by 16th Avenue.

INVESTIGATION OF ALLEGATIONS

43. Jenkins testified credibly at hearing about her role in the investigation of respondent, as the Chief of Human Resources for ACOE. Jenkins was on vacation on September 19, 2023, the day of M.H.'s IEP meeting, but a human resources manager contacted her by telephone about the allegations against respondent. Jenkins directed the manager to immediately verbally place respondent on paid administrative leave.

44. On September 20, 2023, Jenkins met with Castro, and interviewed Dr. Moore, Noack, and Edwards about the disclosures made by M.H. and S.B. the previous day. Dr. Moore described those events consistently in his interview with Jenkins, his subsequent investigative interview, and at hearing. Noack similarly described the portion of the conversation for which he was present, before he left to look for the principal. Edwards told Jenkins what M.H. had stated at the IEP meeting, and stated she did not believe the girls' allegations. Jenkins took notes during her staff interviews.

45. On September 21, 2023, Jenkins issued a letter formally placing respondent on paid administrative leave pending an investigation.

46. On September 25 and 26, 2023, JJC Principal Earl Crawford interviewed six female JJC students about respondent. Crawford took notes during the interviews.³ M.H. and D.S. each described the incident in PE class, reporting that when respondent was trying to get students to participate, S.B. stated that respondent was buying sex on International Boulevard, and respondent got red in the face, ended class, and

³ Crawford died in February 2024 and thus he did not testify at hearing. His interview notes are in evidence.

slammed the door. S.B. declined to be interviewed by Crawford about respondent without the presence of her lawyer. Interviews with two other students confirmed that students were not participating in PE and respondent got mad and ended the class. D.S. told Crawford that respondent had been going to the Blade for three or four years to hand out pepper spray and condoms, had started “dating”, and that respondent had not done anything with D.S. but that he had with S.B.

47. Castro directed Jenkins to retain an outside investigator, due to the serious nature of the allegations. At hearing, Castro noted that she had never previously received such an allegation against a staff member.

Testimony of Elizabeth DeChellis

48. Elizabeth DeChellis was retained to conduct an independent investigation of the allegations against respondent. She had no prior relationship with ACOE. DeChellis is an attorney and a partner of the law firm Van Dermeyden Makus. DeChellis testified credibly at hearing about her training, investigation, and findings, and her investigative report dated February 15, 2024.

49. DeChellis has more than nine years of experience conducting workplace and Title IX investigations. DeChellis has completed more than 500 investigations, most of which involved sexual harassment or sexual assault. She also trains others on how to conduct such investigations.

DeChellis has received extensive training on conducting investigations, including a week-long certification course from the Association of Workplace Investigators (AWI), and trainings about Title IX and sexual harassment in educational environments. She has attended the week-long AWI training twice as a student and at least six times as a faculty member. DeChellis has also completed a multi-day training

from the Advanced Forensic Interview Institute on interviewing minors about sexual assault, including how to ask questions to get accurate information without planting memories or asking leading questions, and how to ask age-appropriate questions. DeChellis has completed Forensic Experiential Trauma Interview training about trauma-informed interview techniques.

50. DeChellis uses a trauma-informed approach in all investigative interviews. She understands that for all people involved in an investigation, talking with an investigator is stressful. She gives interviewees an opportunity to provide a narrative, as well as asking questions. She is mindful about how she phrases questions, using language that is designed not to make the interviewee defensive. She also considers differences in relaying information accurately in high-stress situations.

51. Through her training, DeChellis has learned that trauma affects how the brain encodes and accesses memory. She explained that it is not uncommon for a sexual assault interviewee to remember some details and not others, or to remember more details later. Memories may be recalled non-sequentially. As DeChellis described, trauma can “shuffle” one’s mental notecards of memories. A person may have difficulty recalling specifics of dates and times, but remember how they felt during the events. Based upon her training and experience, DeChellis would expect that trauma may affect the ability of a person to recall and describe past events.

52. DeChellis has been trained on factors used to assess credibility. These include: corroboration, consistency, plausibility, motives to misrepresent, past record or reputation for honesty, and demeanor. At least 90 percent of the sexual harassment investigations she conducts involve “word versus word” allegations with no other eyewitness. DeChellis explained that she does not usually rely heavily on character

evidence, because even if a person is a pillar of the community, she is looking at their behavior in one moment.

53. DeChellis was retained by Jenkins to investigate two allegations: that respondent made students engage in sexually suggestive stretches and exercises during PE class; and that respondent solicited and paid S.B. for sex. She used a preponderance of the evidence standard in reaching her factual findings.

54. DeChellis reviewed the notes from the interviews conducted by Jenkins and Crawford in September 2023. DeChellis interviewed S.B. in October 2023 and interviewed respondent in November 2023. She interviewed D.S. in October 2023, but was not able to interview M.H., who had been released from JJC custody. DeChellis also interviewed Dr. Moore, teachers Noack and Edwards, and JIO's Robert King, Christopher Chatman, and Beatriz Somoza.

55. DeChellis did not sustain the first allegation, finding that respondent did not make students engage in stretches and exercises that were objectively sexually suggestive, although students may have felt uncomfortable for other reasons.

56. After completing her investigation, as described below, DeChellis sustained the second allegation, finding by a preponderance of the evidence that respondent solicited and paid S.B. for sex on at least one occasion.

57. In her interview with DeChellis, S.B. stated that respondent approached her for sex on International Boulevard, they negotiated a price, and they went to San Antonio Park to have sex. S.B. estimated that this occurred about five times in June or July 2022. S.B. stated that respondent paid her about \$200 for each "date," although on one occasion he paid her \$500 not to tell anyone. S.B. stated that respondent tried to have anal sex with her, but that she said no. S.B. reported that she had seen

respondent on International Boulevard at other times, and saw him with at least one other student, but would not provide that student's name.

S.B. stated that during PE class on September 15, 2023, S.B. said to respondent, "Don't make me tell what you doing on International." He slammed the door and left.

S.B. stated to DeChellis, "I feel disgusted, it shouldn't have happened to me," and that the JJC was supposed to be a safe place and "these girls are not safe." S.B. told DeChellis that S.B. did not make the initial report about respondent because she did not think she would be believed, and it would be a waste of her time and energy.

58. In respondent's interview with DeChellis, respondent denied the allegations made by S.B. and M.H. Respondent denied paying S.B. to engage in sex with him, and denied having sex with S.B. or any other student. Respondent denied ever being on International Boulevard apart from his school duties at Bridge Academy, and denied seeing any JJC students there. Respondent told DeChellis he had no knowledge of International Boulevard's reputation for sex trafficking. Respondent denied that any student confronted him in PE class and accused him of soliciting sex from students. Respondent's proffered explanation for why M.H. and S.B. might make such allegations against him was that both students were failing his PE class.

59. DeChellis interviewed D.S., who confirmed S.B.'s account of the confrontation with respondent in PE class. S.B. was lying on the ground and D.S. was walking around because she did not want to jog. Respondent told them to jog. S.B. said to respondent, "you buy my pussy"; and respondent got mad and slammed the door. D.S. reported that S.B. had told her about having sex with respondent for money. D.S.'s understanding was that respondent used to give out pepper spray on

International Boulevard and then started exchanging money for sex. D.S. had been aware of this since coming to the JJC three years prior.

60. Dr. Moore described to DeChellis his conversations with M.H. and S.B., consistently with his statement to Jenkins and his testimony at hearing. What Dr. Moore said was consistent with what S.B. said she had told him, apart from one point about whether respondent paid her \$200 or \$500 to not tell anyone. DeChellis did not find this inconsistency negatively affected S.B.'s credibility.

Dr. Moore told DeChellis he was aware of prostitution occurring on International Boulevard. He noted there was an ACOE school site on the Strand, and there were many sex workers on the street on the drive to that site. Dr. Moore believed that ACOE teachers were aware of sex trafficking on International Boulevard. Dr. Moore noted that respondent had been an ACOE teacher for a long time, stating: "It would be shocking to me if he wasn't aware of that." Dr. Moore also said the majority of the girls detained at the JJC were there because of sex work.

61. Edwards consistently described to DeChellis the conversations with M.H. for which she was present. Edwards said it was common knowledge among teachers at the JJC that girls were sexually trafficked on International Boulevard, and many girls in the facility had been arrested for sex work there. Edwards did not believe the girls' allegations, describing M.H. as manipulative and S.B. as someone who "likes to start a war" and "get in a mess." Edwards described respondent as a Christian man, but told DeChellis that she did not know him personally. Edwards suggested that respondent may have been on International Boulevard volunteering with his church.

62. Noack consistently described to DeChellis the conversations with M.H. for which he was present. Noack said he did not know M.H. very well, but all of their

interactions had been positive. Noack reported that S.B. suffered from emotional dysregulation and was prone to getting upset, but that he had not seen it as much from S.B. during her most recent stay at the JJC. Noack praised respondent as being kind, thoughtful, having integrity, and trying to instill a good work ethic in students. In Noack's view, students' reports of seeing respondent on International Boulevard could be a case of mistaken identity for another white man.

63. JIO King and JIO Somoza confirmed in their interviews with DeChellis that it was common knowledge that sex trafficking occurred on International Boulevard. King stated he would "definitely be surprised" if a teacher was not aware that girls engaged in prostitution there. King noted that he had heard boys and girls talk about International Boulevard a lot. King described S.B. and M.H. as having troubled pasts and displaying behavior issues at times, but also stated that for the most part they listened and followed directions.

64. DeChellis found S.B. credible in her allegations, and found respondent not credible in his denials, for reasons that DeChellis discussed at some length in her report and testimony.

65. DeChellis found several factors supported S.B.'s credibility. S.B.'s account remained consistent over time in her interviews by multiple different people. While there were some inconsistencies, the main details remained the same. DeChellis noted that S.B.'s allegations were corroborated by M.H., who relayed to multiple people that respondent solicited M.H. and S.B., and that S.B. had accepted; and were corroborated by D.S., who had seen respondent on International Boulevard. DeChellis considered whether S.B. had a motive to make false allegations against respondent and concluded that she did not. It was M.H., not S.B., who initiated a report to adults. If S.B. were making a false allegation against respondent to retaliate for a poor grade in PE, she

would have been the one to bring forward the complaint. Instead, it was M.H. who shared it with adults in a moment of annoyance. This did not seem to DeChellis like a calculated plan. In addition, both S.B. and M.H. were set to leave the JJC soon after the allegations were made, undermining any motive related to future PE grades from respondent. DeChellis also considered the power imbalance between incarcerated students and an adult teacher, when evaluating the delay in reporting and the manner in which the allegations surfaced, and found these plausible and not undermining to S.B.'s credibility.

66. DeChellis found that respondent's account was not credible. DeChellis gave significant weight to respondent's denial of any knowledge of sex trafficking on International Boulevard, which she found not credible and implausible, given statements from multiple ACOE and JJC staff that such activity was common knowledge. DeChellis also gave weight to respondent's denial of any confrontation from S.B. during PE class, noting that the reports of the students were all consistent.

67. DeChellis considered the positive statements made about respondent's character, but found those not to be probative of whether respondent had engaged in the alleged conduct. DeChellis noted that none of the adults described any negative interactions with or animus toward respondent, and she thus gave greater weight to the information they did provide about the reputation of International Boulevard. DeChellis considered the mistaken identity theory offered by Noack and respondent's PE grades theory for supposedly false allegations, but did not find these persuasive.

S.B.'S TESTIMONY AT HEARING

68. S.B. stated that she first encountered respondent on the Blade when she was about age 12, although she was not sure about the exact timing. S.B. was standing

near D.S. in the back streets one afternoon near the Foothill Missionary Baptist Church, and saw respondent handing out wellness kits. S.B. went to get a bag, and respondent asked her about her prices and services. Respondent and S.B. recognized each other from the JJC. At hearing, S.B. explained that she knew respondent recognized her, because he called her by her nickname. Respondent offered S.B. money for a "date" and she agreed. S.B. got into respondent's truck and he drove them a short distance, to an area near the soccer field at San Antonio Park. (At hearing, S.B. referred to a map and indicated this was in an alley or dead-end street near the soccer field.) Respondent parked the truck and put up something to cover the windshield, and they got into the backseat. S.B. performed oral sex on respondent, and they had vaginal sex. Respondent brought his own condom. Respondent tried to have anal sex with S.B. but she refused. Respondent paid S.B. \$500, more than her usual price, because she knew respondent from the JJC and he paid her extra to stay quiet.

69. S.B. testified that this was not the only time she had a "date" with respondent, estimating she had sex with respondent for money between five and 10 times, usually on weekend afternoons.

70. S.B. described one occasion when she was with M.H. on the Blade. Respondent approached S.B. and M.H. and solicited them both, with M.H. also recognizing him from the JJC. S.B. agreed to the "date," respondent again parked near San Antonio Park, and they had sex. (At hearing, S.B. referred to the map and identified an area farther along the street that borders the park.) S.B. explained that she often took her dates to locations near the park because there were people nearby if she needed to call for help.

71. S.B. provided other details from her "dates" with respondent. On some occasions, respondent texted S.B. to arrange a meeting. On one occasion, respondent

was driving S.B. back to her usual location and S.B. plugged her phone into his vehicle to play music that she preferred instead of the rock music he had been playing. On one occasion, respondent showed S.B. a photograph of his wife, who has dark skin. S.B. stated that respondent used more than one different car during their encounters.

72. At hearing, S.B. stated respondent usually paid her \$500, more than her usual price, although once he paid \$200 for a short visit. Respondent always paid cash.

73. S.B. explained that the men who “dated” her usually paid \$100 to \$200. She had a daily quota of \$1,000 imposed by her pimp, who beat her if she did not meet it. Violence was something S.B. experienced often while being trafficked.

74. S.B. discussed in her testimony how it felt to see respondent in PE class at the JJC, after going on “dates” with him on the outside. She described it as “horrible” and “weird.” However, S.B. did not initiate a report about respondent. S.B. was upset that M.H. had made a disclosure to adults on her behalf, stating:

I felt worthless. I feel like nasty, disgusted. I feel scared. I feel like who do I come to to talk about this. And I came to my friend. And she just told on me that I did – I really felt embarrass[ed] after that, because that hurts my heart, you know. Like it makes me feel disgusted. I have to go to therapy everyday for this.

S.B. stated that respondent had paid her not to tell anyone, and she was scared. She conceded, however, that respondent had not threatened her. S.B. denied that she was gaining anything by testifying about her experiences with respondent. When asked how it felt to testify, she replied that it felt “horrible.”

75. S.B. described an incident in PE class, when the students were outside on the blacktop. Respondent got mad because the students were not participating in PE activities. S.B. said something to the effect of, "Don't get mad, you mess with little girls on International." Respondent turned red, stopped class, and walked out.

76. S.B.'s demeanor during her testimony was sincere and candid. She was emotional at times, but was neither evasive or reluctant, nor overly enthusiastic.

TESTIMONY OF OTHER ACOE WITNESSES AT HEARING

Dr. Moore

77. Dr. Moore is a school psychologist employed by ACOE. He has bachelor's, master's, and doctoral (Ph.D.) degrees in psychology. Dr. Moore counsels and advises educators, conducts special education testing and assessments, participates in IEP meetings, and provides group therapy to students.

78. Dr. Moore works at multiple ACOE sites, including the JJC and Bridge Academy. Dr. Moore described his awareness that sex trafficking occurs on International Boulevard, with sex workers visible in the neighborhood of Bridge Academy, and his awareness that many youth at the JJC have been trafficked there.

79. Dr. Moore described M.H. as a sweet, kind girl willing to support friends and family, but stated that her meekness is often mistaken as a sign of weakness. M.H. was in her grandparents' custody due to parental drug abuse, and the grandparents told Dr. Moore that M.H. engaged in illegal activity to please her mother.

80. Dr. Moore described S.B. as having been a victim of sexual assault in a group home, and being trafficked for sex. S.B. had a hard time trusting strangers, and had behavioral issues that interfered with her ability to access education.

81. Dr. Moore described the events at and after M.H.'s IEP meeting consistently with his prior statements. It is not unusual for students to have personality conflicts with teachers. But, this is the first report of suspected child abuse by an ACOE employee that he has encountered. Dr. Moore stated that S.B. was upset to discuss the allegations and had not had the courage to volunteer the information previously, and that M.H. did it on her behalf.

82. Dr. Moore stated that students at the JJC typically have problems earning a high school diploma in a timely manner, and most of their students age 16 or older who are enrolled in court schools end up becoming eligible for AB 2306, which allows graduation with reduced credit requirements. Both M.H. and S.B. were eligible. Dr. Moore noted that students eligible for AB 2306 have credit deficiencies across multiple subjects, and it would not be just one subject holding them back from graduating. (Noack also confirmed in his testimony that, upon a review of their transcripts, PE was not the only course that would hold M.H. or S.B. back from graduating.)

83. Dr. Moore testified credibly about the psychological effect of trauma, based on his education, training and experience as a psychologist. Dr. Moore explained that a subtype of posttraumatic stress disorder (PTSD) involves dissociation as a response to stress and trauma, including lapses in memory or disorientation. Dr. Moore opined that it would be reasonable for S.B. or M.H. to have gaps or inconsistencies in their memories, based on his understanding of their backgrounds.

Atkins-Loria

84. Atkins-Loria is a social worker employed by the Alameda County Public Defender's Office, which provides services to ACOE students. She was M.H.'s social worker for a couple of years while M.H. was in and out of the JJC. Atkins-Loria

provided support while M.H. was in custody, including checking in with M.H., talking to her family, and attending meetings such as IEP meetings.

85. Atkins-Loria described the events on the day of M.H.'s IEP meeting consistently with Dr. Moore. M.H. was criticized for not participating in PE. M.H. asked to speak to Atkins-Loria privately, and stated she had issues with the PE teacher involving another youth on the unit. Eventually M.H. disclosed that respondent had been engaging in commercial sexual activity with another girl on the unit from the time that girl was much younger. Atkins-Loria's recollection of the conversation with M.H., S.B., and Dr. Moore was consistent, that S.B.'s paid sexual encounters with respondent on the Blade occurred over a period of time, since S.B. was much younger.

86. Atkins-Loria remained to offer support to M.H. after Dr. Moore stepped out to make telephone calls and report the disclosures. Atkins-Loria described M.H. as being upset and uncomfortable "in the way that you might expect when disclosing information like that."

JIO King

87. JIO King has worked with detained youth at the JJC and Camp Sweeney since 2007. King did not observe any inappropriate behavior from respondent during PE classes, and had not heard any prior specific complaints against respondent from students, apart from students saying they did not want to exercise.

88. In his testimony, King described the disclosures made to him by M.H. and S.B. on the day of the IEP meeting (see Factual Finding 42).

89. King is aware that International Boulevard is an area where female youth are sexually trafficked, and that it is called the Blade. He has been aware of this for

some time from working with detained youth, noting that it is part of his job to know the language used by youth in the facilities.

Jenkins

90. Jenkins confirmed that S.B., M.H., and D.S. had never submitted any other complaints about other ACOE staff members.

91. Jenkins also confirmed that respondent had no prior discipline as an ACOE employee, and no prior complaints lodged against him.

RESPONDENT'S TESTIMONY AT HEARING ABOUT THE ALLEGATIONS

92. Respondent denied soliciting S.B. or M.H. for sex. Respondent denied having sex with S.B. or any other student, and denied ever paying any person for sex. He denied seeing M.H. or D.S. outside of the JJC, and denied any contact with S.B. outside the JJC including by telephone or text. Respondent agrees it is unacceptable for an adult teacher to pay a minor student for sex.

93. Respondent testified that he has always behaved professionally and appropriately with students.

94. Respondent denied having any awareness of International Boulevard's reputation for prostitution or commercial sex prior to being asked about it during the investigation. Respondent denied ever handing out wellness kits on International Boulevard, and stated he has never been to San Antonio Park. He denied ever seeing S.B. or M.H. at either location. Respondent stated he had never heard the area referred to as the Blade, the Strip, or the Strand, and said he never heard any students at the JJC or Camp Sweeney talk about those terms. Respondent was aware of the term "pearl" for female genitalia because he heard boys at Camp Sweeney use it. While

working at the JJC, respondent had heard that some students had engaged in commercial sex when not in custody, but he did not know which students.

95. Respondent denied that any student in PE class ever accused him of buying "pearl" or paying for sex. Respondent denied that there was ever any verbal altercation with a student during PE class.

96. Respondent described his schedule and commute when he worked at Bridge Academy in 2017 and 2018. Respondent said he did not drive on International Boulevard to reach the Bridge Academy school site. He would exit the freeway, drive past Laney College parallel to the (I-880) freeway, turn left onto 8th Avenue, and drive on that street until reaching the parking lot at Bridge Academy. Respondent usually arrived at 6:30 a.m. and stayed on campus all day until leaving at 3:15 p.m.

97. Respondent provided two short videos of the street near Bridge Academy, which he stated were taken by his private investigator at 6:45 a.m. and 2:00 p.m. on November 8, 2024. The videos were taken by a person walking on foot for half a block on 8th Avenue approaching the intersection of International Boulevard. There are no scantily clad young women visible in the videos. Respondent stated this is what the area looked like when he drove to work at Bridge Academy.

98. Respondent also discussed his visits to Bridge Academy in 2021 and 2022 for COVID testing. Respondent stated that when he first started testing at the Winton Avenue site, the lines were lengthy and he had to wait 30 minutes, making him late for his 1:00 p.m. class. Respondent said this was why he changed to the Bridge Academy testing location (which is twice as far away from the JJC as Winton Avenue is).

Respondent drove to Bridge Academy from the JJC weekly for testing at lunchtime. He stated that he would drive there by taking the I-580 freeway, exiting and

driving on 14th Avenue to Foothill Boulevard (which is one-way), and turning left on 8th Avenue to approach Bridge Academy. Sometimes respondent would park at the Baptist Church located at 8th Avenue and E. 15th Street. Respondent stated that on his return to the JJC, he would drive back toward the freeway on E. 15th Street because it was one-way. Respondent stated he only drove down International Boulevard toward the freeway once, because he found that the previously described route was faster.

99. Respondent acknowledged having driven on International Boulevard a couple of times from Bridge Academy to go to the Salvation Army store downtown.

100. Respondent stated that S.B. was his student in summer 2021 during her sophomore year, and again at times in the 2022 and 2023 school years. Respondent described S.B.'s personality as friendly and bubbly, and said she tried hard and got passing grades at first, but the last time before coming back in 2023, she got a D. She was not participating in PE class in the fall of 2023, with respondent stating S.B. had gotten all zeros up to the mid-term grade.

101. Respondent stated that M.H. was his student in 2022, and again in 2023. Respondent described M.H. as not "hardened" but passive-aggressive. M.H. was not participating in PE class starting in August 2023.

102. Respondent told S.B. and M.H. in September 2023 that they had to participate in PE class and that they had not gotten any points yet. He described each girl as making a face and walking off, but not saying anything to him.

103. Respondent has not been arrested or charged with a crime. Respondent stated that he was contacted by an Oakland Police Department detective and that he agreed to attend an interview, but that he did not actually do so on advice of counsel.

ACOE's Decision to Seek Dismissal of Respondent

104. On April 2, 2024, Jenkins issued a notice of investigation findings to respondent, summarizing the factual findings of the investigation conducted by DeChellis, and stating the allegation of soliciting and paying for sex was sustained. Jenkins went on to list the sections of the Education Code, Penal Code, and board policies that Jenkins concluded respondent had violated.

105. Based on the results of the investigation, Jenkins determined that ACOE needed to pursue dismissal of respondent, and recommended that action to Castro. In Jenkins's opinion, respondent's conduct could not be addressed with discipline short of dismissal. Jenkins found that respondent violated board policies about a safe and positive school climate, sexual harassment, and inappropriate adult-student interactions. Educators must maintain professional and ethical standards with students inside and outside the classroom, and not engage in romance or sex with a student. Jenkins found that respondent's conduct was contrary to good morals, jeopardized student safety and trust, and violated a teacher's responsibility to ensure a safe learning environment. She also stated that such conduct undermines the teaching profession and public trust in teachers. She believes respondent is unfit to teach. Jenkins is concerned for student well-being if respondent were returned to the classroom, noting that ACOE serves a vulnerable student population, and sometimes school is a student's only safe space.

106. Castro testified about the impact of respondent's conduct on ACOE and its students, and her conclusion that respondent must be dismissed. Castro persuasively described the impact on students with prior trauma history, who cannot learn if they do not feel safe, and who are incarcerated and compelled to attend class. Castro noted that there is "zero chance" that other students would not know about the

allegations raised by M.H. and S.B., and that students are watching to see if a student bringing forth such an allegation is believed.

107. Castro also explained that, although in her experience many student complaints turn out to have no basis, in this case it seems “extraordinarily implausible” to her that S.B. and M.H. would make false allegations against respondent. Castro noted these students have a “deep history of victimization,” with many adults against whom they could make legitimate accusations, but she emphasized:

these are young people who are steeped in the culture of silence. And they don't talk about things that they should talk about all the time because they deeply mistrust authority figures and they deeply mistrust that the entities to whom they report are going to believe them. [¶] So, like, there's no — there's nothing in it for them to make a false accusation. They have nothing to gain and everything to lose from bringing an allegation like this.

108. Castro stated that if she were required to return respondent to the classroom, she would have to ensure that another ACOE staff member was present at all times, and even so there would be an adverse impact on student trust.

Castro also described the negative impact of returning respondent to the classroom on ACOE's relationships with its public agency and community partners. When serving detained students in court schools, ACOE is working in facilities run by the Probation Department, and its staff and leaders must trust ACOE with the youth for whom they share responsibility. She also noted that there are additional legal obligations to protect incarcerated youth from abuse. ACOE also must maintain the

trust of community partners and other public agencies in serving its student population.

Respondent's Additional Evidence

109. Respondent and his wife described respondent's hobbies and activities when he is not teaching or coaching. After work or on weekends, if respondent is not coaching sports, he works on home improvement projects or shops at thrift stores, antique shops, or construction salvage stores. He watches television in the evenings. Respondent and his wife attend church together on Sunday mornings. They do not perform church volunteer work at any off-site locations.

110. Respondent's wife described respondent's schedule, and stated that he is never gone for more than two hours outside of work or coaching. She acknowledged that she is not with him at all times.

111. Respondent and his wife testified that respondent's wife controls their household finances, and she frequently monitors the status of their shared bank accounts. Respondent and his wife provided bank, credit card, and Venmo statements. Respondent's wife stated there were no transactions or withdrawals that she did not recognize. They stated they do not keep much cash on hand, paying only a few service providers in cash. Both respondent and his wife acknowledged that cash may be withdrawn from point-of-sale terminals at various stores where they regularly shop.

112. Respondent provided his teaching evaluation from the 2015-2016 school year, when he worked at the JJC as a floater and substitute teacher. He received a rating of "satisfactory," with positive comments from the evaluator.

CHARACTER WITNESSES AND LETTERS OF RECOMMENDATION

113. Noack testified that he worked with respondent at the JJC, found him to be of good character, and had not witnessed any inappropriate interactions with students.

114. Edwards has been a teacher at ACOE for more than 20 years, and she teaches all subjects except PE to girls at the JJC. She has heard girls on the unit talk about the Strip and is aware that some girls are involved in commercial sex. Edwards stated she has caught students being dishonest many times, providing as an example a student saying that someone had taken off Edwards's wig, which had not happened.

Edwards described M.H. as affable and nice, and stated that if M.H. says something and you question her, she will retract it if it was not true. Edwards described S.B. as a student who "makes a lot of mess" and gets into conflicts with other students.

Edwards did not believe the allegations made by M.H. and S.B. She believes that the students did not like respondent because he was a white teacher and made them work hard for their grades, and she has told students not to be prejudiced and that respondent has a black wife. Edwards confirmed that neither M.H. nor S.B. had made complaints against any other teachers or JJC staff.

Edwards has known respondent for more than 10 years. She has observed his PE class and has not seen anything unprofessional. Edwards offered detailed testimony about how she and respondent would "hang out" and talk together while working at the JJC, discussing church and their shared religion and beliefs, and how respondent shared his life story with some students. She described respondent as a godly person. This testimony is in conflict with what Edwards told DeChellis, that respondent was a

Christian man but she did not know him personally, and this inconsistency diminishes her credibility.

115. Respondent called several additional ACOE or Probation Department employees as character witnesses.

(a) George Hoss has been a teacher at ACOE for 29 years; he now teaches boys at the JJC. Hoss has known students to lie, offering as an example a student copying off another student's paper. Hoss worked with respondent for 15 or 16 years. During the COVID pandemic shelter-in-place, respondent picked up students' written work weekly and brought it to Hoss's house for grading. Once respondent repaired Hoss's fence. Hoss described respondent as a good role model for students. Hoss is aware that International Boulevard is known for commercial sex, and has heard students call it the Blade.

(b) Robert Butler recently retired after 24 years as an ACOE paraeducator, including working at Camp Sweeney and the JJC. Butler stated that students are dishonest every day, offering examples such as students lying about having prohibited items in the classroom. He had many conversations with respondent at work. Butler has not witnessed any inappropriate behavior by respondent. Some students complained about respondent because they did not like doing PE exercises. Butler praised respondent's character.

(c) Arthur Hogenauer is an ACOE teacher who has taught boys at the JJC for the last two to three years. He stated students in his class lie daily, such as lying about their progress on class assignments or hacking the computer system to change grades. He has observed respondent's classes and not seen anything unprofessional. Hogenauer and respondent became friends and often had wide-ranging conversations

in the JJC parking lot after work. Hogenauer stated that he was unaware of prostitution on International Boulevard prior to the allegations being made against respondent, although he did see such activity last year.

(d) Maria Luz "Lucy" Arevalo has worked as an ACOE office assistant at the JJC since 2012, and interacted with respondent daily. She described respondent as a responsible employee and a polite and respectful coworker. Arevalo was not very familiar with International Boulevard, but heard from teachers who work in the area that they saw prostitutes on the street while walking from the BART station to school.

(e) Veronica Olivares works for ACOE as a student information systems analyst, and has known respondent from the JJC for 10 years. Olivares described respondent as a professional and respectful coworker.

(f) Donald John Young has worked for the Probation Department for over 40 years. He is currently an Institutional Supervisor at Camp Sweeney and formerly worked at the JJC. Young was the liaison between the Probation Department and ACOE when respondent taught at Camp Sweeney. He last worked with respondent eight to 10 years ago, including coaching a football team at Camp Sweeney. Young occasionally saw respondent outside of work at high school football games in Oakland. Young described respondent's character as good, caring, and firm but fair. Young wrote respondent a letter of recommendation in 2014 and stands by it.

(g) Irven Lamar Hill worked for over 20 years as a JIO at the JJC and Camp Sweeney. Hill stated that he has known students to lie, for example, students saying that contraband in their room was not theirs. Hill has known respondent since 2010 or 2012, and they worked together at Camp Sweeney and the JJC. Respondent

occasionally came to Hill's son's football games in Oakland or Pittsburg. Hill praised respondent as professional, caring, and encouraging to youth.

116. Respondent also offered several other character witnesses.

(a) Josue Valdez was a student of respondent's at Camp Sweeney more than 10 years ago. Valdez kept in touch with Camp Sweeney teachers who supported his pursuit of education. He sought respondent's advice via email on matters such as enrolling in school. Valdez spoke to respondent's students at the JJC on one occasion while Valdez was in school to become an emergency medical technician. Respondent also attended Valdez's graduation from nursing school in December 2023. Valdez described respondent as patient, not quick to anger, and offering good advice.

(b) Benjamin Ballard is the athletic director and head football coach at Northgate High School, and knows respondent from coaching at Northgate. Ballard saw no inappropriate behavior from respondent. He described respondent as responsible, and a leader who talked with students about moral accountability. Ballard has been to respondent's home for team dinners and has taught respondent's sons. Ballard wrote respondent a letter of recommendation some years ago.

(c) Michael McClellan recently retired after teaching for 42 years at Walnut Creek Christian Academy, where he worked with respondent's wife. Respondent coached McClellan's children at Berean Christian High School and McClellan taught respondent's sons. McClellan respects respondent as a professional.

(d) Cheryl Schierman was respondent's high school classmate and they taught together in Idaho from 1996 to 2005. Cheryl and her husband Burrell "Butch" Schierman are good friends with respondent and respondent's family. They have seen respondent for visits on a few occasions after respondent moved to California in 2005.

Cheryl described respondent as deeply religious and invested in troubled kids. Butch described respondent as an honorable person who tries to align his life to biblical standards; he trusts respondent implicitly.

(e) Alan Williams and Bette Williams know respondent from teaching and coaching in Idaho. Alan and respondent taught and coached together at Nampa Christian, and they remained in touch after respondent moved to California, primarily by telephone and text messages. Alan described respondent as professional and of impeccable character. Bette is a nurse who volunteered to provide health education, and she observed some of respondent's PE classes at Nampa Christian. She described respondent as being a man of integrity, kind, and effective with kids.

117. Respondent's character witnesses generally expressed disbelief that he could commit the acts he was accused of, but agreed that if the allegations against him were true, that respondent should not be employed as a teacher.

118. Former JJC Principal Crawford wrote an undated letter of recommendation for respondent, praising respondent's work ethic and professional resilience.

119. Dan Hawkins, head football coach at Boise State University, wrote a letter of recommendation for respondent in 2002. He described respondent as a person of moral fiber who cares about his students and athletes.

Credibility Findings and Ultimate Factual Findings

120. Weighing all of the factors relevant to the credibility of S.B. and of respondent, the Commission determined that S.B.'s testimony was more credible than that of respondent as to the key allegations in this matter.

121. Multiple factors support S.B.'s credibility. S.B.'s reports to multiple people and over time remained consistent in their main details: respondent solicited her for sex in the area of International Boulevard, respondent knew her from the JJC, respondent had sex with her for money, and he paid her extra to keep quiet. There were a few inconsistencies in S.B.'s accounts about the timeframe for these encounters, the number of times they occurred, and amounts paid, but the Commission did not find these to undermine S.B.'s overall credibility. The ongoing timeframe for S.B.'s sexual encounters with respondent, dating back several years before the allegations surfaced, was part of her reports from the beginning, as confirmed by the testimony of Atkins-Loria and Dr. Moore. Moreover, the testimony of Dr. Moore and DeChellis was persuasive as to the effect of trauma on memory, offering a reasonable explanation for some gaps or inconsistencies.

The testimony of S.B. was corroborated in several respects by M.H. and D.S., who did not testify at hearing but whose hearsay statements may be considered pursuant to Government Code section 11513, subdivision (d). M.H. corroborated that respondent solicited her and S.B. in the area of International Boulevard and that S.B. went on a date with respondent. D.S. saw respondent on International Boulevard, and corroborated that S.B. said she had sex with respondent. M.H. and D.S. corroborated S.B.'s testimony that S.B. had verbally accused respondent in PE class of buying sex.

S.B.'s demeanor during her testimony at hearing and in the audio recording of the call with police dispatch was consistent with that of a witness telling the truth, rather than a witness who was fabricating.

The evidence did not establish a motive for either S.B. or M.H. to fabricate their allegations against respondent. S.B. was not the one who first brought the allegations forward. In fact, S.B. was upset that her friend M.H. had betrayed her confidence by

making the disclosure to adults at the IEP meeting. If S.B. were making up a false story for purposes of gain or retaliation against respondent, it is reasonable to assume that she would have raised it herself. Moreover, the circumstances of M.H.'s disclosure suggest that it was not planned in advance. This also argues against fabrication. Respondent suggests that S.B. and M.H. made up false allegations because they were failing his PE class. However, both S.B. and M.H. were set to leave the JJC soon after making the allegations against respondent—this undermines any suggested motive about wanting to affect their PE grades. Moreover, PE was not the only class holding back either student from graduation. Lastly, neither student made any complaints against other teachers, despite credit deficiencies in other subjects, or against JJC staff. These factors support truthfulness, rather than a tendency to lodge false allegations.

Contrary to the lack of a plausible motive to lie, S.B. had strong disincentives to make allegations against respondent and to maintain them consistently for more than a year, long after she left the custody of the JJC. As compellingly explained by Castro, detained youth at the JJC are steeped in a culture of silence. S.B. did not make an initial report because she did not think she would be believed, and as she explained at hearing, she was scared to come forward, it felt "horrible" to testify, and she had nothing to gain by her testimony.

122. Multiple factors rendered respondent less credible. Respondent's denial of any knowledge that International Boulevard was known for sex trafficking was not plausible, given the abundant evidence (even from his own witnesses) that this was common knowledge. This seriously undermined his credibility. Respondent's attempts to explain why he had no idea about this plainly visible sex trafficking activity, despite his months working at Bridge Academy, and his approximately 40 lunchtime visits to that location for COVID testing, are strained and not persuasive.

Respondent's denial of any verbal confrontation from S.B. during PE class was also not credible, given the corroboration of S.B.'s account by multiple other students.

Respondent's proffered explanation that S.B. and M.H. must have been lying, either in retaliation for getting bad PE grades or in an attempt to improve them, is not plausible, for the reasons explained above. Moreover, the examples of other JJC students lying that were offered by respondent's witnesses (apparently to support an argument that the students in this case must also be lying), were typical examples of petty, impulsive teenage untruths, rather than significant and ongoing fabrications.

Respondent's evidence regarding his busy schedule, his wife's knowledge of his whereabouts, and his finances has little probative value. The character evidence offered by respondent's witnesses is given little weight, and has no probative value as to whether respondent engaged in misconduct that by its nature would be kept secret.

123. A preponderance of the evidence established that respondent repeatedly solicited S.B., a minor who was his student when she was detained at the JJC, for commercial sex; repeatedly engaged in sex with S.B. and paid her for such sexual activity; and on one occasion solicited S.B. along with M.H., another minor JJC student.

LEGAL CONCLUSIONS

1. ACOE has the burden of proof in this matter, and the standard of proof in a teacher dismissal hearing is a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1038-1040.) The term "preponderance of the evidence" means "more likely than not" (*Sandoval v. Bank of America* (2002) 94 Cal.App.4th 1378, 1387-1388), or that the evidence has more convincing force than that opposed to it (see BAJI No. 2.60).

Statutory Grounds for Dismissal

2. Education Code section 44932, subdivision (a), provides that a permanent employee shall not be dismissed except for one or more of the causes set forth in that subdivision. The causes alleged in this matter are immoral conduct, including but not limited to egregious misconduct (*id.*, subd. (a)(1)), and evident unfitness for service (*id.*, subd. (a)(6).)

3. In a proceeding regarding a teacher's dismissal for cause, a Commission on Professional Competence may only vote for or against the dismissal; the Commission may not dispose of a charge seeking dismissal by imposing probation or an alternative sanction. (Ed. Code, § 44944, subd. (d)(1) & (3).) The Commission's decision is deemed to be the final decision of the school district's governing board. (*Id.*, subd. (d)(4).) The Commission has broad discretion in determining what constitutes unfitness to teach, and whether dismissal is the appropriate sanction. (*California Teachers Ass'n v. State of California* (1999) 20 Cal.4th 327, 343-344; *Fontana Unified School Dist. v. Burman* (1988) 45 Cal.3d 208, 220-222.)

IMMORAL CONDUCT, INCLUDING EGREGIOUS MISCONDUCT

4. ACOE seeks to dismiss respondent for immoral conduct, including but not limited to, egregious misconduct, pursuant to Education Code section 44932, subdivision (a)(1). The statute defines egregious misconduct as "immoral conduct that is the basis for an offense described in Section 44010 [a list of enumerated sex offenses] or 44011 [controlled substance offenses] of this code, or in Sections 11165.2 to 11165.6, inclusive, of the Penal Code [child abuse, neglect, endangerment]." (Ed. Code, § 44932, subd. (a)(1).) Education Code section 44010's list of sexual offenses includes Penal Code section 261.5 (unlawful sexual intercourse with a minor).

5. Immoral conduct has been defined to mean that which is hostile to the welfare of the general public and contrary to good morals. Immoral conduct is not confined to sexual matters. It includes conduct showing moral indifference to the opinions of respectable members of the community, and conduct showing an inconsiderate attitude toward good order and the public welfare. (*Board of Education of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal. App.2d 808, 811.) The definition of immoral conduct “must be considered in conjunction with the unique position of public school teachers, upon whom are imposed responsibilities and limitations on freedom of action which do not exist in regard to other callings.” (*San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1466 [quotation marks and citation omitted].) The term “immoral conduct” is also discussed in the recent decision of *Crawford v. Commission on Professional Competence* (2020) 53 Cal.App.5th 327. It includes conduct that is hostile to the welfare of the school community; a teacher’s conduct is “immoral” under section 44932 when it negatively affects the school community in a way that demonstrates the teacher is unfit to teach. (*Id.* at p. 337, citing *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 224.)

6. As set forth in Factual Finding 123, a preponderance of the evidence established that respondent solicited minor students for commercial sex, and repeatedly engaged in commercial sex with a minor student. These are plainly acts constituting immoral conduct. Respondent’s conduct, which included sexual intercourse with a minor, also meets the statutory definition of egregious misconduct. Cause exists to dismiss respondent for immoral conduct and for egregious misconduct under Education Code section 44932, subdivision (a)(1).

EVIDENT UNFITNESS FOR SERVICE

7. Education Code section 44932, subdivision (a)(6), provides that a permanent employee may be dismissed for evident unfitness for service. Evident unfitness for service means clearly not fit or suitable for teaching, ordinarily by reason of a temperamental defect or inadequacy. (*Woodland Joint Unified School Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) The term "connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

8. A preponderance of the evidence established that respondent repeatedly solicited and engaged in sex with a minor (Factual Finding 123), and this repeated misconduct established that respondent is evidently unfit for service. Cause exists to dismiss respondent under Education Code section 44932, subdivision (a)(6).

Analysis of the *Morrison* Factors

9. The ultimate question in this case is whether respondent is unfit to teach under the factors established by the California Supreme Court in *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 229-230. The *Morrison* factors are: (1) the likelihood that the conduct in question may have adversely affected students or fellow teachers; (2) the degree of such adversity anticipated; (3) the proximity or remoteness in time of the conduct; (4) the type of teaching certificate held by the teacher; (5) the extenuating or aggravating circumstances, if any, surrounding the conduct; (6) the praiseworthiness or blameworthiness of the motives resulting in the conduct; (7) the likelihood of the recurrence of the questioned conduct; and (8) the extent to which disciplinary action may inflict an adverse impact or chilling effect upon the

constitutional rights of the teacher involved or other teachers. Only the pertinent factors must be addressed. (*West Valley-Mission Community College Dist. v. Concepcion* (1993) 16 Cal.App.4th 1766, 1777.) The factors may be applied to all of the proven conduct in the aggregate. (*Woodland Joint Unified School Dist., supra*, 2 Cal.App.4th at pp. 1456-1457.)

10. Application of the pertinent *Morrison* factors in this matter demonstrates that respondent is unfit to teach. The conduct in question adversely affected ACOE students, both S.B. and M.H., and other students who learned of respondent's conduct, and adversely affects the ACOE community at large, as persuasively explained by Castro. The degree of such adversity is severe. The conduct occurred over a period of time and recently. There are no extenuating circumstances surrounding the conduct, which is aggravated by its very serious (and illegal) nature. Respondent's motives are blameworthy. These factors all weigh heavily in favor of a determination that respondent's misconduct renders him unfit to teach.

Disposition

11. Although the Commission has found cause to dismiss respondent, the Commission has discretion to decline to dismiss him. (*Fontana Unified School Dist. v. Burman* (1988) 45 Cal.3d 208, 222.)

Respondent does have positive qualities as an educator, as evidenced by a positive performance review and a teaching award, the testimony of a former student and some colleagues, and a lack of prior discipline. These factors, however, do not mitigate the serious nature and extent of respondent's misconduct.

The Commission determined that respondent's dismissal is the appropriate disposition in this matter.

12. The Commission determined that cause exists to dismiss respondent based on immoral conduct, including egregious misconduct, and evident unfitness for service. Each ground for dismissal provides a separate and independent basis for respondent's dismissal. The Commission reached this decision on a unanimous vote.

ORDER

Respondent Matthew Campbell is hereby dismissed from his position as a permanent certificated employee of the Alameda County Office of Education.

DATE: 05/15/2025


Alayna Carter (May 15, 2025 19:23 PDT)

ALAYNA CARTER

Commission Member

DATE: 05/15/2025


Kelly Cooper (May 15, 2025 21:23 PDT)

KELLY COOPER

Commission Member

DATE: 05/16/2025



HOLLY M. BALDWIN

Commission Chair

Administrative Law Judge

Office of Administrative Hearings

